Lucky Ali vs State on 30 April, 2010

Author: Sanjiv Khanna

Bench: Sanjiv Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 1560/2009

LUCKY ALI ..... Petitioner
Through: Mr. Rajat Aneja with Mr. Chand Zafar, Advs.

versus

STATE ..... Respondent
Through: Mr. Arvind Kr. Gupta, APP for the State with Inspector Manoj Kumar, P.S. Amar Colony.

CORAM:
HON'BLE MR. JUSTICE SANJIV KHANNA

ORDER

% 30.04.2010

1 FIR No.355/2009 was registered on 18th July, 2009 at the instance of one

Mr.Imran Khan complaining of fraud by a company One to Ten Outsourcing Solutions Pvt. Ltd. The complainant had alleged that he was offered a job in Singapore and against a sum of Rs.30,000/- paid by him, he was issued receipt of Rs.5,000/-. It is stated in the complaint that the petitioner herein is the Managing Director of the said company and had issued the said receipt. The complainant had also stated that he had deposited original documents including his passport with the petitioner but later on, he came to know that a fraud had been played and he was fraudulently induced to part money and documents. 2 On 17th August, 2009 when this application for anticipatory bail came up for hearing, the Court was informed that they are 167 persons who were made to part with money and were promised jobs at Singapore and 50 such persons had already filed their complaints stating that the company/petitioner had charged BAIL APPL. N.1560/2009 Page 1 them between Rs.20,000/- to Rs.60,000/- but receipt for Rs.5,000/- was issued. 3 On 17th August, 2009 learned counsel appearing for the petitioner stated that the original documents had

already been returned to 24 persons and the petitioner would take steps to return all original documents and make payments. He further stated that he would join investigation and would not abscond. On 17th August, 2009 learned counsel appearing for the State had filed Status Report giving details of 74 such victims who had stated that they had deposited amounts ranging between Rs.20,000/- to Rs.60,000/-.

4 To test the bona fides of the petitioner the Court granted interim bail vide order dated 17th August, 2009 on the basis of the statement made and the undertaking given by him by way of affidavit dated 13th August, 2009. The bail application was adjourned to 24th September, 2009.

5 The petitioner filed Criminal Miscellaneous Application No.1131/2009 on or about 23rd September, 2009. In this application it was stated that after order dated 17th August, 2009, the petitioner had approached all persons and returned their original documents comprising of passport, experience certificates, certificates of academic qualifications besides refunding amount of Rs.5,000/- collected from each of them along with the receipts. It was stated that the aforesaid amounts and documents had been collected from 102 members and the list of the said members was enclosed. This application states that the petitioner was in possession of affidavits given by 102 persons wherein it was clearly stated that they had received the documents and the membership fee from the company and they had no grievance against them. In the application, it is also stated that 25 other registered candidates had appeared and were interviewed in a five star hotel in Delhi on 27th February, 2009 but the said persons had paid Rs.1000/- as registration fee. The said amount of Rs.1000/- had been returned to the said persons. In Paragraph 8 of the said application, it is stated that in addition to the aforesaid 127 persons i.e. 102 persons, who had paid Rs.5,000/- and 25 persons who had paid Rs.1000/-, there are no other persons from whom the petitioner or his company had taken payment and thus all claims stand fully settled and redressed. It is further stated that one Mr. Khalid Israr, who was a Legal Officer BAIL APPL. N.1560/2009 Page 2 of the company had conspired to cheat the complainant and others as a result of which he had enrolled 40 persons as members without any authority under his own signatures, in respect of which the petitioner had no knowledge. Accordingly, the petitioner has filed an FIR against Mr. Khalid Israr. The petitioner is not aware of the persons who had made payment to Mr. Khalid Israr. The petitioner has stated that he is not liable to make payment to the said persons.

6 By order dated 24th September, 2009 the Court directed the State to verify the factum of payment and return of original documents. It was also stated that the petitioner would return all original documents to the complainant Mr. Imran Khan. Direction was also given to the Investigating Officer to examine whether Mr. Khalid Israr, ex-Legal Officer of the Company, was in possession of some documents.

7 On 10th November, 2009 it was reiterated on behalf of the petitioner that settlements had been made with at least 102 persons who had deposited various amounts with the petitioner to secure their employment at Singapore. The counsel for the petitioner stated that these persons had signed and verified affidavits. The Investigating Officer was again directed to verify the averments made in the affidavits of return of the original documents and payments. Counsel for Mr.Imran Khan however stated that original documents had not been returned. It was stated by the counsel for Mr.

Imran Khan that wrong stand was taken by the petitioner and even his signatures were forged on the annexure attached to the anticipatory bail application. He had alleged that the petitioner and his two friends namely Mr. Khalid Israr and Mr. Sarvar Raza were harassing the complainant. Counsel appearing for the petitioner refuted the said allegations and had sought time to take instructions with regard to the filing of the annexures with the bail application. It was also stated that the premises of the petitioner, where some of the original documents could be lying was sealed. 8 The State has filed Status Report dated 17th August, 2009 which gives a list of 74 members along with details of payments made to the petitioner. The said Status Report also mentions whether money or the documents have been BAIL APPL. N.1560/2009 Page 3 returned to the person concerned. It is noticed from the said list that in several cases police after verification was informed that the documents and the money had not been returned. In one case the cheque paid had bounced. In some cases documents had been returned but money was not refunded.

9 The State has filed another Status Report dated 13th January, 2010. In this Status Report, it is mentioned that on 16th October, 2009 notices were sent to 95 persons who had made deposits with the petitioner and 32 such persons had responded to their notices. Some of said persons had also appeared before the Officers and sent their written replies. The said list shows that in most cases it has been stated that payments were not received by them, though documents were returned to some of the victims. Today also, several persons present in the Court have stated that they have not received their original documents or the payments. Learned counsel for the petitioner however states that he is not liable to refund payments because these persons had not made the payment to the company or the petitioner but payments were made to Mr. Khalid Israr. It is also stated that the amount refundable is the amount mentioned in the receipt and not the amount mentioned in the complaints. All victims have stated that they had paid substantial amounts between Rs.20,000/- to Rs.60,000/- but were issued receipts for Rs.5,000/- or Rs.1,000/-. The receipts issued by the petitioner are itself disputed are not evidentiary of the amounts actually paid by the victims. The petitioner is now only trying to wriggle out the original commitment made by him.

10 I have also examined the affidavits relied upon by the petitioner. They are verbatim the same and have been carefully drafted. Paragraphs 3 and 4 of the affidavits reads as under:-

> "3 That I have got all my documents from the company namely One to Ten Solutions Pvt. Ltd. 4 That I have no grievance against the company's management namely One to Ten Solutions Pvt. Ltd."

11 The said affidavits do not refer to any money as payment or refund. Some of the affidavits are not even signed by the person who had made payment but is BAIL APPL. N.1560/2009 Page 4 signed by third persons, who have not stated on what basis or on what authority they had signed the affidavit. Some of the affidavits are signed by one person on behalf of several victims.

12 It is clear from the aforesaid facts that the petitioner who was shown indulgence from this Court and was granted interim protection vide order dated 17th August, 2009, has not complied with his statement and undertakings. He is, therefore, not entitled to further indulgence and accordingly, the present bail petition is dismissed. It is clarified that the observation made in the present order are

for the disposal of the present petition and will not binding on the Trial Court or in the subsequent state of proceedings.

SANJIV KHANNA,J

APRIL 30, 2010
J

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